

Ghangas Breeding Farm And Hatchery v. State of Uttar Pradesh

Allahabad High Court · Division Bench · 12 June 2025 · 2025:AHC:96495-DB · WRIT - C No. - 19585 of 2025 · **Writ disposed of; Clause 6.5 application to be adjudicated in one month; coercive action stayed six weeks.**

HEADNOTE

Where a consumer's Clause 6.5 application against a generated bill has not been adjudicated, the High Court directs the authority to decide that application within one month of production of a certified copy and stays coercive action for six weeks or until the decision, whichever is earlier. The writ is disposed of without examining the bill on merits.

FACTUAL SUMMARY

On 2 August 2024 a bill of Rs. 22,09,555.82 was generated against the petitioner, Ghangas Breeding Farm And Hatchery. The petitioner approached the relevant authorities under Clause 6.5 of the U.P. Electricity Supply Code, 2005, and on 24 March 2025 filed an application under that clause. By a supplementary affidavit the petitioner produced a document dated 18 April 2025, which the Court held was not an adjudication of the 24 March 2025 application. The Electricity Department was represented when the writ was heard.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

Clause 6.5 billing objection — time-bound adjudication

HOLDING

An unadjudicated application under Clause 6.5 of the U.P. Electricity Supply Code, 2005 must be decided by the relevant authority within one month of production of a certified copy of the order. Coercive action against the consumer is stayed for six weeks or until that decision, whichever is earlier. ¶ 3-4

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE 2.8.2024 BILL AND THE CLAUSE 6.5 APPLICATION

Left to the relevant authority; the Court did not examine the bill. ¶ 3